

2010 04 19

LAKESWOOD CITY COUNCIL MINUTES

Monday, April 19, 2010
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:00 p.m.

ROLL CALL

Councilmembers Present: 7 – Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Jason Whalen, Walter Neary and Claudia Thomas.

FLAG SALUTE

The Pledge of Allegiance was led by Councilmember Thomas by request of Mayor Richardson.

REPORTS BY THE CITY MANAGER

City Manager Neiditz announced that Parks Appreciation Day will be held on April 24, 2010. He also announced that the Lakewood Police Department participated in the Tip-A-Cop program to support the Special Olympics project.

City Manager Neiditz reported that the City launched its Facebook social media campaign this weekend.

City Manager Neiditz announced that the Gravelly Lake Drive partial closure has been rescheduled to start next week.

PROCLAMATIONS AND PRESENTATIONS

Proclamation declaring April 24, 2010 as Parks Appreciation Day.

Councilmember Brandstetter presented a proclamation declaring April 24, 2010 as Parks Appreciation Day to Mr. Roger Laybourn, Chair of the Parks and Recreation Advisory Board.

Proclamation declaring April 26, 2010 as Domestic Violence Awareness Day.

Mayor Richardson presented a proclamation declaring April 26, 2010 as Domestic Violence Awareness Day to Ms. Susan Adams, Director of the Family Justice Center and Ms. Miriam Barnett, Executive Director of YWCA.

PUBLIC COMMENTS

Speaking before the Council were:

Dennis Haugen, Lakewood resident, spoke about a Washington Mutual Bank article on corruption and the crime in Lakewood.

Ray Garafolo, Lakewood resident, spoke about a March 27, 2010 letter he submitted with regard to an abandoned home and asked who is responsible to maintain the residential areas that have been foreclosed and abandoned, and who is responsible to advise the public when halfway houses are established in residential areas. He asked if there are dimming of street lights on 104th Street and Hipkins Road for energy conservation. He indicated that he seldom sees police patrolling at the residential area on 104th Street.

Ken Severe, Lakewood resident, donated a tree for Parks Appreciation Day.

C O N S E N T A G E N D A

- A. Approval of the minutes of the City Council meeting of April 5, 2010.
- B. Approval of the minutes of the City Council Study Session of April 12, 2010.
- C. Approval of payroll check numbers 1, 218, 111961 to 111989 and direct deposit check numbers 39623 to 39884, in the amount of \$1,226,229.69 for the period March 15, 2010 through March 31, 2010.
- D. Approval of payroll check numbers 219, 111990 to 112005 and direct deposit check numbers 39885 to 40141, in the amount of \$854,642.44, for the period April 1, 2010 through April 15, 2010.
- E. Approval of claim voucher numbers 55771 to 55857, in the amount of \$1,400,066.01, for the period ending March 31, 2010.
- F. Approval of claim voucher numbers 55858 to 55958, in the amount of \$335,613.01, for the period ending April 7, 2010.
- G. Approval of claim voucher numbers 55959 to 56050, in the amount of \$434,763.18, for the period ending April 15, 2010.
- H. Items Filed in the Office of the City Clerk:
 - 1. Lakewood Arts Commission meeting minutes of January 4, 2010 and February 1, 2010.
 - 2. Redevelopment Advisory Board meeting minutes of March 16, 2010.
 - 3. Lakewood Sister Cities Association General Membership meeting minutes of March 18, 2010.

4. Citizens Transportation Advisory Committee meeting minutes of March 23, 2010.

COUNCILMEMBER THOMAS MOVED TO ADOPT THE CONSENT AGENDA AS PRESENTED. SECONDED BY COUNCILMEMBER moss. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

R E G U L A R A G E N D A

PUBLIC HEARINGS AND APPEALS

This is the date set for a public hearing by the City Council on the Five Year FY 2010-2015 Consolidated Plan, FY 2010 Annual Action Plan and FY 2007 and FY 2008 Consolidated Plan amendments and proposed use of funds for CDBG and HOME.

Speaking before the Council were:

Dennis Haugen, Lakewood resident, spoke about drug lords contributing to social ills, and “appreciating” social service programs from publicly-funded programs.

Karen Priest, Tillicum Community Center, thanked the CDBG Citizens Advisory Board for their support of the Community Center. She then spoke about the programs offered at the Community Center that serves the Tillicum and Woodbrook low income residents, and provided examples of people who received assistance.

Charlie Gray, Pierce County Housing Authority, spoke about the Five Year Consolidated Plan and the infrastructure for building on Lakewood’s goal and priorities. He talked about the synergy between housing and economic development/employment. He spoke in support of the Tillicum sewer connections and for creating affordable housing. He thanked the CDBG Citizens Advisory Board and the Council for an informative process in developing its funding priorities.

Sallie Shawl, Paint Tacoma Pierce Beautiful, spoke about how housing is a part of economic development and the health of the community.

Jim Taylor, Lakewood resident, thanked the CDBG Citizens Advisory Board and the Council for supporting the Tillicum Community Center and for continuing to support the residents of Tillicum and Woodbrook. He spoke about the redevelopment efforts in Tillicum including the Habitat for Humanity housing projects.

There being no further testimony, the hearing was declared closed.

This is the date set for a public hearing by the City Council relative to the abatement of dangerous buildings and a public nuisance at 15013 Union Avenue SW. (Richard Hilton)

Speaking before the Council were:

Dennis Haugen, Lakewood resident, commented that the number one cause for building abandonment and abatement is the lack of

jobs. He commented on conducting quality control work in obtaining building permits.

Richard Hilton, Federal Way resident, spoke about not being notified until after the City's abatement was done and about the abatement work he had done and expended on the property. He expressed concern about the garage being broken into.

There being no further testimony, the hearing was declared closed.

This is the date set for a public hearing by the City Council relative to the abatement of dangerous buildings and a public nuisance at 12706 Pacific Highway SW. (Hyun Park)

Speaking before the Council was:

Dennis Haugen, Lakewood resident, noted that this property is a commercial site and it is the middle class that builds retail and spends money, not the lower class.

There being no further testimony, the hearing was declared closed.

APPOINTMENTS

Motion No. 2010-12 appointing Edward Judie, Jr. to serve on the Human Services Funding Advisory Board through December 31, 2010.

COUNCILMEMBER THOMAS MOVED TO CONFIRM THE APPOINTMENT OF EDWARD JUDIE, JR. TO SERVE ON THE HUMAN SERVICES FUNDING ADVISORY BOARD THROUGH DECEMBER 31, 2010. SECONDED BY DEPUTY MAYOR ANDERSON. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

ORDINANCES

[Ordinance No. 514](#) amending Chapter 15A.14 of the Lakewood Municipal Code relative to the International Fire Code for automatic fire sprinkler systems in townhouses.

COUNCILMEMBER WHALEN MOVED TO ADOPT ORDINANCE NO. 514. SECONDED BY COUNCILMEMBER NEARY. VOICE VOTE WAS TAKEN AND CARRIED WITH COUNCILMEMBER BRANDSTETTER VOTING IN OPPOSITION.

UNFINISHED BUSINESS

None.

NEW BUSINESS

Motion No. 2010-13 awarding a bid to Road Construction Northwest, Inc, in the amount of \$378,536.90, for the construction of overlay improvements on Gravelly Lake Drive SW from 100th Street to Bridgeport Way SW (e1160).

Mayor Richardson announced that Motion No. 2010-13 is being removed from the agenda.

Motion No. 2010-14 awarding a bid to Miles Resources LLC, in the amount of \$378,095, for the construction of storm drainage system improvements on 59th Avenue SW from Bridgeport Way SW and Gravelly Lake Drive SW (e2031).

COUNCILMEMBER THOMAS MOVED TO AWARD A BID TO MILES RESOURCES LLC, IN THE AMOUNT OF \$378,095, FOR THE CONSTRUCTION OF STORM DRAINAGE SYSTEM IMPROVEMENTS ON 59TH AVENUE SW FROM BRIDGEPORT WAY SW AND GRAVELLY LAKE DRIVE SW (E2031). SECONDED BY COUNCILMEMBER NEARY. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

Motion No. 2010-15 authorizing the execution of an agreement with the Washington Auto Theft Prevention Authority, in the amount of \$500,000, for the auto theft reduction program from July 1, 2010 through June 30, 2011.

COUNCILMEMBER neary MOVED TO AUTHORIZE THE EXECUTION OF AN AGREEMENT WITH THE WASHINGTON AUTO THEFT PREVENTION AUTHORITY, IN THE AMOUNT OF \$500,000, FOR THE AUTO THEFT REDUCTION PROGRAM FROM JULY 1, 2010 THROUGH JUNE 30, 2011. SECONDED BY COUNCILMEMBER MOSS. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

BRIEFING BY THE CITY MANAGER

City Manager Neiditz reported that an update on Ft. Steilacoom Park is scheduled for next week's April 26, 2010 Council Study Session.

In response to Council's questions about the Citizens Advisory Boards and Committees (CABCs), City Manager Neiditz distributed copies of the roles and responsibilities of the CABCs.

In response to Council's questions about e-verify, City Manager Neiditz reported that an update will be provided to the Council at the May 24, 2010 Study Session.

In preparation of the budget process, City Manager Neiditz reported that the Council will be provided a long term financial update on May 17, 2010 and that a pre-budget strategic workshop is scheduled for June 17, 2010.

Discussion ensued about the Utilities and Transportation Commission's June 7 and 8, 2010 public hearings about the rail crossings in Lakewood. The Council discussed advancing a position that this is effectively a new train line versus an enhancement of an existing train line and that the City should ask for mitigation measures as such. Further discussion ensued on developing a working outline for the hearing and coordinating with the DuPont City Council.

CITY COUNCIL COMMENTS

Councilmember Moss spoke about the Pierce County WorkForce Advisory Board Distinguished Alumni awards ceremony she attended last week.

Councilmember Moss spoke about serving as a Trustee for the Clover Park Technical College (CPTC). She commented on the MetLife Foundation Community College Excellence Awards ceremony she attended in which CPTC was awarded a \$50,000 grant for its successful initiatives.

Councilmember Neary suggesting holding a workshop on how to testify effectively at the Utilities and Transportation Commission public hearing.

Councilmember Brandstetter commented on the centennial celebration of Tillicum and asked how the City will participate in the celebration.

Councilmember Thomas reminded the Council that Youth Council candidates for school year 2010-2011 will be interviewed next month.

Deputy Mayor Anderson commented on the CPSD Board meeting he attended and fielded questions about projects of the City. He noted that the Board supports the Office of Economic Adjustment and the need for national funding.

Deputy Mayor Anderson announced that the Yakima City Council is considering to adopt an 'e-verify' ordinance like Lakewood.

Deputy Mayor Anderson spoke about his conversation with Pierce College Chancellor Michele Johnson who commented that the only capital budget for community colleges that passed in the Legislative budget was for the Ft. Steilacoom campus totaling \$8 million.

Mayor Richardson commented about the noise coming from Pierce College which can be heard from Waughop Lake.

Mayor Richardson congratulated City Manager Neiditz for being designated as the Regional Vice President of the International City Managers Association.

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Mayor Richardson congratulated Tes Ongoco for receiving her Certified Municipal Clerks designation from the International Institute of Municipal Clerks.

Mayor Richardson encouraged everyone to participate in the Parks Appreciation Day event on Saturday, April 24, 2010, from 9:00 a.m. to noon.

Councilmember Thomas announced that the Lakewood Community Collaboration meets every second Wednesday of each month, with its June meeting to be held at the First Baptist Church.

Mayor Richardson thanked Ken Severe for donating a tree for Parks Appreciation Day.

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Executive Session

Mayor Richardson announced that Council will recess into Executive Session for approximately 30 minutes to discuss performance of a public official.

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Council recessed into Executive Session at 9:25 p.m. and reconvened at 9:55 p.m. At 9:55 p.m., Mayor Richardson announced that Executive Session will be extended for an additional 20 minutes. At 10:15 p.m., Mayor Richardson announced that Executive Session will be extended for an additional 15 minutes. At 10:30 p.m., Mayor Richardson announced that Executive Session will be extended for an additional ten minutes. The Council reconvened at 10:40 p.m.

ADJOURNMENT

There being no further business, the meeting adjourned at 10:40 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC

CITY CLERK